

HOUSE No. 1639

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to eliminating liability limits for abuse of a minor.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1639

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 1639) of Michael S. Day relative to eliminating liability limits for abuse of minors. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to eliminating liability limits for abuse of a minor.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 85K of chapter 231 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting, in line 12, after the word “costs” the following words:-
3 provided, however, that claims of sexual abuse of a minor, as that term is defined in section 4C
4 of chapter 260, shall not be subject to a limitation on damages.